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DEPARTMENT OF THE AIR FORCE
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Civil Engineering

ENVIRONMENTAL MANAGEMENT OUTSIDE THE UNITED STATES

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This instruction implements Air Force Policy Directive (AFPD) 32-70, *Environmental Considerations in Air Force Programs and Activities.* This publication applies to all civilian employees and uniformed members of the Regular Air Force, the Air Force Reserve (AFR), the Air National Guard (ANG), the United States Space Force (USSF), and those with a contractual obligation to abide by the terms of Department of the Air Force (DAF) issuances who are operating at enduring locations under DAF operational control outside the United States. Applicability also applies to tenant organizations, operational ranges, contractor-run, and geographically separated unit facilities and activities at enduring locations under DAF operational control outside the United States. This publication does not apply to non-enduring (i.e., contingency) locations as defined in DoD Directive (DoDD) 3000.10, *Contingency Basing Outside the United States*. Applicable environmental requirements for non-enduring/contingency locations are addressed in Air Force Instruction (AFI) 10-210, *Prime Base Engineer Emergency Force (BEEF) Program.* Guidance for overseas environmental planning as part of the Environmental Impact Analysis Program (EIAP) is provided in AFI 32-1015, *Integrated Installation Planning.*

Any organization may supplement this instruction but must coordinate all supplements with the office of primary responsibility for this Department of the Air Force Instruction (DAFI) from Headquarters, United States Air Force, Directorate of Civil Engineers (AF/A4C) prior to certification and approval. See also **paragraph 3.2.7** for specific consultation requirements before issuing supplementary environmental compliance criteria. Refer recommended changes and questions about this publication to the office of primary responsibility (OPR) using the DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through

the appropriate functional chain of command. Major Commands (MAJCOMs), Field Commands (FLDCOMs), Field Operating Agencies (FOAs) and Direct Reporting Units (DRUs) may supplement this instruction and send one copy of each supplement to Headquarters, United States Air Force, Directorate of Civil Engineers, Asset Management Division (AF/A4CA); other commands (e.g., installation, United States Air Forces Central Command (U.S. AFCENT); United States Air Force Southern Command (U.S. AFSOUTH); Unites States Air Force Africa (U.S. AFAFRICA)) may also supplement this instruction and send one copy of each supplement to the Air Force Civil Engineer Center/Environmental Management Directorate (AFCEC/CZ).

The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See DAF Manual (DAFMAN) 90-161, *Publishing Processes and Procedures*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the requestor commander for non-tiered compliance items. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction 33-322 Records Management and Information Governance Program and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System.

SUMMARY OF CHANGES

This document has been revised significantly and needs to be reviewed completely. This rewrite updates office symbols; removes duplicative material; streamlines compliance and remediation procedures and approval processes; and clarifies tier waiver application/designation consistent with DAFMAN 90-161. It further clarifies responsibilities for the Air Force Material Command (AFMC), the Air Force Installation and Mission Support Center (AFIMSC) and detachments, AFCEC, in-theater DAF Headquarters (HQ), and in-theater DAF installation or facility. Environmental planning guidance previously held in **Chapter 5**, *Environmental Impact Analysis Process (EIAP)*, of this instruction was moved to AFI 32-1015, *Integrated Installation Planning.*

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Chapter 1

PROGRAM OVERVIEW

1.1. Purpose. This instruction provides guidance and requirements to ensure DAF environmental programs at enduring locations outside the United States, its territories, and possessions (i.e., overseas) achieve and maintain environmental quality as prescribed in AFPD 32-70.

1.2. Scope. This instruction identifies environmental compliance and remediation requirements unique to overseas installations and activities, and references, where appropriate, other DoD and DAF issuances that apply to enduring locations worldwide.

1.3. Compliance. DAF commanders and responsible officials at installations and other enduring locations overseas will:

1.3.1. Comply with and implement the environmental provisions of all applicable international agreements as defined by DoD Instruction (DoDI) 5530.03, *International Agreements*, and DAFI 51-403, *International Agreements*, (e.g., Status of Forces Agreement (SOFA), Defense Economic Cooperation Agreement). **(T-0)**

1.3.2. Comply with environmental requirements in DoDI 4715.05, *Environmental Compliance at Installations Outside the United States*, DoDI 4715.08, *Remediation of Environmental Contamination Outside the United States*, DoDI 4165.69, *Return of DoD Sites Overseas*, AFI 32-7001, *Environmental Management,* and other applicable DoD and DAF environmental policies and guidance. **(T-0)** References: DoDD 4715.1E, *Environment, Safety, and Occupational Health (ESOH)*.

1.3.3. For activities and operations at DoD-controlled enduring locations outside the United States, comply with environmental standards and provisions in country-specific DoD Final Governing Standards (FGS) or in DoD Manual (DoDM) 4715.05 Volumes 1-5, *Overseas Environmental Baseline Guidance Document (OEBGD)* if no FGS exists. **(T-0)** References: DoDI 4715.05, AFPD 32-70.

1.3.4. Comply with applicable environmental policies and guidance issued by the geographic combatant commands (GCCs) and DoD-designated lead environmental components (LECs) which implement or supplement DoD overseas environmental policy. **(T-0)** References: DoDI 4715.05, DoDI 4715.08.

1.4. Legal and Other Requirements . Outside the United States, DAF operations and personnel are only subject to United States federal environmental laws, regulations, and policies if explicitly required by an act of Congress, an executive order (EO), a decision of an appropriate United States federal court, a binding international agreement, or a DoD or DAF policy or instruction.

1.4.1. If complying with this instruction conflicts with other requirement sources (e.g., applicable international agreement, AFI 32-7001 or other DAF instruction), contact the appropriate environmental function (EF) or the AFCEC overseas subject matter expert (SME) for guidance.

1.4.2. If a unit or organization disagrees with a DoD LEC or GCC environmental management decision, the unit or organization may request reconsideration of the decision. The DAF commander and/or responsible official will staff reconsideration requests through the

operational chain of command and/or through AFMC to AFIMSC and AFCEC to ensure in-theater DAF HQ's review and endorsement before going to the LEC or GCC. **(T-1)**

1.4.3. Exceptions, Waivers, and Deletions.

1.4.3.1. DAF commanders and responsible officials will seek exceptions from, waivers of, and deletion of requirements specified in applicable DoD, GCC, or LEC policies (e.g., a directive, instruction, regulation, country-specific FGS provision, and/or DoDM 4715.05 V1-5 mandate) in accordance with the waiver, exception, or deletion provisions of those applicable policies. **(T-0)** Reference: DoDI 4715.05. **Paragraph 3.2.8** of this DAF instruction addresses waiver, exception, and deletion criteria under applicable DoD, GCC, and LEC policies for environmental compliance.

1.4.3.2. See paragraphs **4.2.6 and 4.5.5** for exceptions to remediation requirements authorized under DoDI 4715.08.

1.5. Programming for Overseas Environmental Requirements.

1.5.1. AFMC through AFIMSC and its detachments and/or AFCEC will program environmental requirements on behalf of overseas installations in accordance with AFI 32-7001 and based upon the primary sources of overseas environmental policy and guidance specified in paragraphs **1.3.1 - 1.3.4 (T-0)** Reference: DoDI 4715.05 and DoDI 4715.08.

1.5.2. When programming and budgeting for overseas requirements, AFMC through AFIMSC and its detachments and/or AFCEC should consider the unique attributes of overseas operations specified in paragraphs **1.3 and 1.4**, and other program environmental requirements using guidance from AFI 32-7001, Chapter 6, *Environmental Quality Programming Guidance*.

1.6. Training. Unit commanders will ensure overseas personnel are appropriately trained to carry out environmental responsibilities required by law, regulation, or DoD and DAF policy. Units will document completion of that training on Air Force Form 623, *Individual Training Record Folder*, Air Force Form 623A, *On-the-Job Training Record Continuation Sheet*, or equivalent document. **(T-3)**

1.7. Higher Headquarters Notification. Numbered air forces, installation commanders and/or the installation environmental element or responsible officials will notify their assigned MAJCOM Civil Engineer, EF, and respective Judge Advocates of environmental issues, incidents, or developments overseas that might impact the installation, MAJCOM, LEC, or GCC mission. AFMC through the AFIMSC EF and/or AFCEC EF assists the numbered air forces, the installation environmental element or responsible officials who will staff and report the following environmental incidents and developments within three (3) business days to the in-theater DAF HQ and AF/A4CA:

1.7.1. Receipt of host nation enforcement actions as defined in AFI 32-7001. **(T-1)**

1.7.2. Significant spills or releases of contaminants into the environment. **(T-1)**

1.7.3. Discovery of environmental contamination on DAF installations that is likely to pose a substantial impact to human health and safety (SIHHS). **(T-1)**

1.7.4. DAF-related environmental incidents that have received attention in the local or national media of the installation's host nation. **(T-1)**

1.8. Classified and Controlled Unclassified Information (CUI). DAF personnel have a personal responsibility to protect CUI at all times and will handle classified and CUI publications, forms and information that is part of the DAF Overseas Environmental Program, according to DoDI 5200.48_DAFI 16-1403, *Controlled Unclassified Information (CUI)*. **(T-0)**

1.9. Release of Unclassified Environmental Information. Unclassified environmental data and information intended for release to host nation authorities or other external audiences must be reviewed and approved by MAJCOM Logistics, Engineering and Force Protection (A4), MAJCOM Public Affairs (PA), and the appropriate MAJCOM or HQ Foreign Disclosure Office (FDO), as appropriate. **(T-0)** Reference: DAFPD 16-2, *Disclosure of Military Information to Foreign Governments and International Organization*s. DAF commanders and responsible officials intending to release environmental data and information will:

1.9.1. Follow DAFMAN 16-201, *Department of the Air Force Foreign Disclosure and Technology Transfer Program*, for policy, guidance, and procedures on FDO requests, review, and approvals. **(T-1)**

1.9.2. Follow DAFI 61-201, *Management of Scientific and Technical Information (STINFO),* which provides guidance on scientific and engineering integrity in accordance with DoDI 3200.20 to communicate, collaborate, and exchange STINFO among DoD scientists, engineers, acquisition professionals, other federal agencies, and academic, private sector, and international partners. **(T-1)**

1.9.3. Follow AFMAN 35-101, *Public Affairs Procedures,* Chapter 8, *Security and Policy Review Process,* to conduct the security and policy reviews required for all documents intended for release to the broader public (e.g., Freedom of Information Act (FOIA) responses, public service broadcasts, program fact sheets, etc.). **(T-1)**

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. Assistant Secretary of the Department of the Air Force (Installations, Environment and Energy) (SAF/IE). SAF/IE will:

2.1.1. Provide policy, advocacy, representation, and oversight of DAF environmental programs and performance globally.

2.1.2. Serve as the principal DAF representative on all environmental issues, including overseas items of interest to the Office of the Secretary of Defense, United States federal agencies, Congress, and external organizations.

2.1.3. Re-delegate LEC responsibilities under DoDI 4715.05 and overseas remediation authorities under DoDI 4715.08 received from the Secretary of the Air Force (SECAF) through Headquarters Air Force Mission Directive (HAFMD) 1-18, *Assistant Secretary of the Air Force (Installations, Environment and Energy)*, through the chain-of-command to appropriate general officer-level commanders.

2.2. Deputy Assistant Secretary of the Department of the Air Force (Environment, Safety, and Infrastructure) (SAF/IEE). SAF/IEE will:

2.2.1. Establish and issue overarching environmental policy and guidance for all DAF installations based on guidance in AFPD 32-70. Provide direction and program oversight for all environmental matters pertaining to the formulation, review, and execution of environmental plans, policies, budgets, and DAF positions regarding overseas environmental policies and international agreements.

2.2.2. Serve as the principal DAF representative on all DoD environmental committees and working groups, including the Office of the Secretary of Defense (OSD) Overseas LEC Committee.

2.2.3. Perform LEC responsibilities under DoDI 4715.05 (see Appendix to Enclosure 3 for partial list of DoD designated LECs) and overseas remediation authorities under DoDI 4715.08 received from SAF/IE, or re-delegate those LEC responsibilities through the chain-of-command to appropriate general officer-level commanders. No further delegation is authorized.

2.2.4. Identify applicable legal and other overseas environmental requirements that the DAF must address within its environmental processes.

2.2.5. Develop the DAF Overseas Environmental Program's strategic vision, goals, and objectives in accordance with applicable EOs, DoD policy and DAF mission objectives.

2.2.6. Conduct senior-level review of DAF overseas environmental performance metrics.

2.2.7. Support the maintenance of DoDM 4715.05 V1-5, and when the DAF is designated by the Under Secretary of Defense for Acquisition and Sustainment (USD(A&S), lead a combined services/Defense Logistics Agency (DLA) review and update DoDM 4715.05 V1-5 based on guidance in DoDI 4715.05. SAF/IEE may delegate the lead responsibility for updating the DoDM 4715.05 V1-5G to an appropriate Headquarters Air Force (HAF)-level office (e.g., Air

Force, Deputy Chief of Staff, Logistics, Engineering and Force Protection, Directorate of Civil Engineers (AF/A4C)). No further delegation is authorized.

2.3. General Counsel of the Department of the Air Force (Installations, Energy and Environment Directorate) (SAF/GCN). SAF/GCN will:

2.3.1. Serve as the legal advisor to SAF/IE and SAF/IEE on environmental policy matters and issues, including remediation of environmental contamination attributable to the DAF and realignment of DAF installations.

2.3.2. Serve as DAF legal representative on all environmental-related policy issues involving the OSD Office of General Counsel or General Counsel offices of other federal agencies.

2.3.3. When appropriate, consult with the Office of the Judge Advocate General, Operations and International Law Directorate, Environmental Law and Litigation Division - Field Support Center (AF/JAOE-FSC), or other DAF legal services providers.

2.4. Air Force Deputy Chief of Staff, Logistics, Engineering and Force Protection, Directorate of Civil Engineers (AF/A4C). AF/A4C will:

2.4.1. Provide the implementing strategy, instructions, and programmatic guidance to execute approved Overseas Environmental Program policy, advocate for resources, and oversee execution of environmental reporting and tracking requirements throughout the DAF as part of an integrated environmental management system (EMS).

2.4.2. Administer DAF Civil Engineer governance to develop, coordinate and review overseas environmental guidance and monitor MAJCOM, FLDCOM, and AFMC/AFIMSC/AFCEC environmental activities.

2.4.3. Establish procedures feasible for sustainable overseas operations by achieving efficiencies through pollution prevention, reducing risks to public health, protecting natural and cultural resources, minimizing the generation or release of pollutants into the environment, and supporting DAF water, waste and energy policy goals.

2.4.4. Coordinate overseas guidance, strategies, and resource needs with SAF/IEE, Air Force, Deputy Chief of Staff, Logistics, Engineering and Force Protection (AF/A4), AFMC/AFIMSC/AFCEC, and applicable MAJCOM/A4s and FLDCOM/S4s.

2.4.5. Review and provide input to the development of DoD and other applicable DAF policy, guidance, and metrics with overseas environmental implications or impacts.

2.4.6. Support the maintenance of the DoDM 4715.05 V1-5, *OEBGD*, including participation on the DoDM 4715.05 V1-5, *OEBGD* steering committees and working groups when requested by SAF/IEE. When the service lead responsibility for updating the DoDM 4715.05 V1-5 rotates to the DAF, and when delegated by SAF/IEE, lead and resource the review and update of the DoDM 4715.05 V1-5 based on guidance in DoDI 4715.05.

2.4.7. Coordinate with other DoD HQ components, MAJCOM/A4s, FLDCOM/S4s, and AFMC/AFIMSC/AFCEC in providing environmental support to DAF installations overseas to ensure consistency in implementing DoD environmental policies and management operations regionally and worldwide.

2.4.8. Communicate and advocate for environmental funding for the Overseas Environmental Program through the Planning, Programming, Budgeting, and Execution (PPBE) process. See additional PBBE related responsibilities found in AFI 32-7001.

2.4.9. Monitor and assess DAF-wide program performance in relation to the natural infrastructure and built infrastructure to meet mission requirements and promote asset management. Identify overseas trends, resource requirements, and corrective actions.

2.4.10. Report programmatic progress toward established overseas environmental goals, objectives, and metrics to SAF/IEE and USD(A&S) as appropriate.

2.5. The Office of The Judge Advocate General (AF/JA). AF/JA will:

2.5.1. Serves as the independent uniformed legal advisor to the Secretariat, Air Staff, and Space Staff and field activities on DAF environment issues and activities. Including matters of policy, advocacy, representation, engagement with OSD and other federal agencies, and oversight of DAF environmental programs and performance globally.

2.5.2. Provide legal advice primarily through AF/JAOE-FSC on new and emerging issues, litigation matters, and on compliance with environmental laws, DoD policy, and environmental obligations under binding international agreements.

2.5.3. When appropriate, consult with the SAF/GC or SAF/GCN.

2.6. The Air Force Surgeon General (AF/SG). AF/SG, through the Air Force Medical Command, Bioenvironmental Engineering Division (AFMED/SG3PB), will:

2.6.1. Provide policy, guidance, and advocate for resources to meet overseas drinking water compliance monitoring and reporting requirements as defined in DAFI 48-144, *Drinking Water Surveillance Program*, FGS, and DoDM 4715.05 V3, *Overseas Environmental Baseline Guidance Document: Water*.

2.6.2. Provide policy, guidance, and advocate for resources to meet environmental health risk assessment and exposure control recommendations in order to comply with requirements as defined in FGS and DoDM 4715.03 V1-5.

2.6.3. Provide policy, guidance, and advocate for resources to support health impact assessments and SIHHS determination recommendations as described in **Chapter 4** of this instruction.

2.6.4. Provide policy, guidance, and advocate for resources to participate in the Hazardous Materials Management Process (HMMP) and manage the human health aspects of the HMMP.

2.7. Air Force Deputy Chief of Staff, Operations, Training Infrastructure Division (AF/A3TI). Integrates appropriate overseas environmental requirements and considerations into strategic and mission planning, policies, procedures, and training for overseas range operations.

2.8. Air Force Material Command (AFMC) through the Air Force Installation and Mission Support Center (AFIMSC) and the Air Force Civil Engineer Center, Environmental Management Directorate (AFCEC/CZ). AFMC through AFIMSC and AFCEC/CZ will:

2.8.1. Provide cross-functional integration and program resource advocacy for DAF-wide active installation and mission support activities, including at overseas enduring locations.

2.8.2. Develop and advocate for the Environmental Quality Program Objective Memorandum (POM) as the program element monitor (PEM). Provide consultation, oversight, and resource advocacy for programming, and act as the primary focal point for communicating DAF Environmental Program budget guidance, requirements, and impacts of budget cuts. Provide review and validation of the overseas environmental resources included in the Environmental Quality Program POM and manage development of the Environmental Quality Integrated Priority List for the Overseas Environmental Program.

2.8.3. As appropriate, provide support as an EF, responsible for providing environmental management support to a specific installation, organization, command, or activity located and operating outside the United States. The EF:

2.8.3.1. Fulfill the roles and responsibilities applicable for support to overseas enduring locations specified in AFI 32-7001, Chapter 2.

2.8.3.2. When tasked or authorized, provide support to the designated LECs in the performance of their responsibilities under DoDI 4715.05 (e.g., FGS updates) and for overseas remediation under DoDI 4715.08. In support of the LEC, the EF:

2.8.3.2.1. Staff requests for exceptions to DoD, GCC, LEC, and other applicable environmental policies.

2.8.3.2.2. Consult and cooperate with representatives of other in-theater LECs regarding environmental issues with prior approval of the LEC.

2.8.3.2.3. Review and provide recommendations for country-specific environmental policies and guidance for LEC consideration and approval. Such policies and guidance apply to all DoD components stationed at enduring locations in the subject country.

2.8.4. Provide technical services and reach-back support to assist MAJCOMs, numbered air forces, and installations to comply with applicable Overseas Environmental Program requirements and standards and execute overseas environmental projects.

2.8.5. Participate in overseas environmental audits as required to assess the state of compliance with overseas policy and standards (i.e., FGS, DoDM 4715.05 V1-5, etc.).

2.8.6. Program, plan, and execute environmental compliance assessment programs for in-theater installations based on guidance in DoDI 4715.05, country-specific FGS or DoDM 4715.05 V1-5 if no FGS exists, AFI 32-7001, AFI 90-801, *Environment, Safety, and Occupational Health Councils*, and DAFI 90-302, *The Inspection System of the Department of the Air Force*.

2.8.7. Analyze deficiencies and support applicable MAJCOMs and overseas installations to develop and implement corrective action plans.

2.8.8. Perform trend analyses and forecast the impact of existing and proposed new FGS, United States federal, or DoD environmental requirements on DAF overseas operations.

2.8.9. Lead discussions on critical air, soil, and water contaminants. Provide guidance and perform training on overseas environmental efforts to address chemicals of concern as identified by installation and the LEC. Team with installation personnel and consult with host nation government authorities if authorized by the GCC, as required.

2.8.10. Notify SAF/IEE, AF/A4C, and the applicable MAJCOM commander through appropriate staffing actions of environmental incidents or other interest items occurring at installations based on guidance in AFI 32-7001, or as described in **paragraph 1.7** of this instruction.

2.8.11. Provide technical advice and assistance to the appropriate in-theater DAF HQ Surgeon General or Surgeon General-designee regarding SIHHS determinations pursuant to DoDI 4715.08. Technical support includes but not limited to, when requested or authorized, preparation of health impact assessments and investigation plans.

2.8.12. Perform oversight of the DAF Environmental Program, including environmental compliance and remediation overseas, in accordance with applicable DoD and DAF overseas policy, other overseas directives, and international agreements and obligations.

2.8.13. Develop supplemental guidance consistent with AF/A4C programmatic strategy to implement environmental policy and requirements applicable to overseas operations.

2.8.14. Provide technical consultations, as appropriate, to ensure mission and technical initiatives or objectives are met.

2.8.15. Support the designated LEC in the performance of its responsibilities for environmental compliance (e.g., FGS updates) as outlined in DoDI 4715.05 and for overseas remediation under DoDI 4715.08.

2.8.16. Advise AF/A4C leadership on overseas environmental issues and monitor activities at the MAJCOM and installation levels.

2.8.17. Assess and report on the implementation of overseas projects, status of progress against established Overseas Environmental Program execution goals, objectives, priorities, and metrics, and proposed corrective actions to address unsatisfactory performance.

2.8.18. Support the DAF and HAF-defined strategic visions, objectives, and targets by maintaining environmental programs and establishing installation or program-specific environmental management objectives and targets to reduce environmental impacts.

2.8.19. Ensure EMS and compliance audits are conducted as outlined in AFI 32-7001, AFI 90-801, *Environment, Safety, and Occupational Health Councils*, and DAFI 90-302, *The Inspection System of the Department of the Air Force*.

2.8.19.1. Participate in the continual evaluation processes by monitoring data (e.g., Management Internal Control Toolset (MICT) Self-Assessment Checklists (SAC), trend analysis, and any other existing functional processes).

2.8.19.2. Utilize the MICT SAC to help assess and prioritize higher HQ requirements and document self-identified, non-compliant observations with corrective actions plans as outlined in DAFI 90-302.

2.8.20. Ensure *The Environmental Assessment and Management (TEAM) Guides* are updated from the DoDM 4715.05 V1-5 or FGS.

2.8.21. Support the programming, planning and execution of external EMS and environmental compliance assessment audits, as requested.

2.8.22. Plan, program, and budget for preparation and maintenance of country-specific FGS where the DAF is the LEC.

2.8.23. Support the maintenance of the DoDM 4715.05 V1-5, including SME participation on the technical and environmental media focused working groups, when requested by SAF/IEE and/or AF/A4C.

2.9. In-Theater Department of the Air Force Headquarters (i.e., Numbered Air Force Commands, MAJCOMs, FLDCOMs, Other Commands Above Installation Level, and DRUs).

2.9.1. Commander will:

2.9.1.1. Follow all applicable DoD and DAF policies and issuances implementing applicable environmental laws, regulations, and standards, including the provisions of DoDI 4715.05, standards in country-specific FGS, or the DoDM 4715.05 V1-5 if no FGS exists, and the obligations of any binding international agreement.

2.9.1.2. Consult with the appropriate LECs on implementation of requirements within DoD policies, including negotiating and cooperating with host nation authorities, as appropriate.

2.9.1.3. Consult with the GCC on environmental disputes with the designated LEC.

2.9.1.4. Make SIHHS determinations after consultation with the appropriate in-theater DAF HQ Surgeon General or Surgeon General-designee and the LEC, if any. The in-theater DAF HQ commander may delegate authority to make SIHHS determinations to a subordinate general officer in writing. Do not further re-delegate.

2.9.2. Civil Engineer (CE) will:

2.9.2.1. Support the EF with its environmental incident reporting responsibilities and other mission impacting environmental matters.

2.9.2.2. Assist installations to identify and eliminate circumstances that may lead to non-compliance with country-specific FGS or DoDM 4715.05, V1-5, as appropriate.

2.9.3. Staff Judge Advocate will provide a legal determination that a requirement for remediation of environmental contamination under an international agreement is mandatory pursuant to guidance in DoDI 4715.08, DoDI 5530.03, and DAFI 51-403. Document and retain the legal determination in writing with other associated remediation information as described in DoDI 4715.08 and **Chapter 4** of this instruction.

2.9.4. Surgeon General (SG) will:

2.9.4.1. Serve as the appropriate DoD Component medical authority for DoDI 4715.05 and DoDI 4715.08. May delegate or designate "DoD Component medical authority" responsibilities as specified in paragraphs **4.3 and 4.5** of this instruction.

2.9.4.2. Provide consultative advice and assistance to the in-theater DAF HQ or MAJCOM commander, as appropriate, in making SIHHS determinations and impact-based decisions. Advise the in-theater DAF HQ or MAJCOM commander, as appropriate, on how to perform actions necessary to address remediation of environmental contamination as outlined in DoDI 4715.08.

2.9.4.3. Assist in resolving DAF drinking water violations and other potential health risk issues associated with the country-specific FGS or DoDM 4715.05 V3.

2.9.4.4. Assist installations to identify and eliminate circumstances that may lead to unacceptable human health risks and non-compliance with country-specific FGS or DoDM 4715.05 V1-5 as appropriate.

2.9.4.5. Notify AFMED/SG3PB of non-compliance situations based on potable water quality sampling at installation level within three (3) calendar days from date of notification by the installation bioenvironmental engineer or other installation authority.

2.9.4.6. Participate in the HMMP and manage the human health aspects of the HMMP based on guidance in AFI 90-821, *Hazard Communication (HAZCOM) Program*, and verify Safety Data Sheets are current, complete, and available in the host nation language(s) as well as in English.

2.9.5. Safety (SE) will participate in the HMMP and assist the HMMP team with oversight of the hazardous material authorization and tracking requirements of AFMAN 32-7002, *Environmental Compliance*. SE will implement processes to identify and eliminate, where feasible, or reduce physical hazards to personnel, property, and the general public when those hazards result from operations involving hazardous material.

2.10. In-Theater Department of the Air Force Installation or Facility.

2.10.1. Commander (CC) will:

2.10.1.1. Ensure installation personnel, activities, and operations under their control follow this instruction, applicable international agreements, and any country-specific policy developed by the appropriate LEC and GCC.

2.10.1.2. Ensure installation personnel, activities, and operations report and manage correspondence from appropriate host nation government authorities about noncompliance with environmental requirements, releases of environmental contaminants, and environmental inspections based on guidance in AFI 32-7001.

2.10.1.3. Accomplish HAF notification as required in **paragraph 1.7** of this instruction.

2.10.1.4. Ensure its installation and facilities manage their HMMP per applicable country-specific FGS or DoDM 4715.05, V4: OEBGD: *Hazardous Materials, Storage Tanks, Spills and Pesticides*, as appropriate.

2.10.1.5. Consult with the in-theater EF, bioenvironmental engineering, and in-theater DAF HQ legal office, as appropriate, and the LEC, to make decisions on how to perform actions necessary to address remediation of contamination, ranging from institutional control responses, such as restricting access or stopping use, to more extensive remedies.

2.10.2. Civil Engineer (CE) will:

2.10.2.1. Execute and manage through the installation or facility EF on environmental compliance and remediation actions as required by this instruction.

2.10.2.2. Maintain all site-specific remediation records and key supporting documents in a site audit file for documenting and reporting overseas environmental liabilities and

remedial actions taken. See **paragraph 4.6** of this chapter for more guidance on site audit file documentation.

2.10.2.3. Partner with the installation medical group in the HMMP and support management of the human health aspects of the HMMP.

2.10.3. Medical Group Commander (MDG/CC) will:

2.10.3.1. Provide SIHHS risk assessments and consultation to commander to empower them to make impact-based decisions on how to perform actions to address remediation of environmental contamination, ranging from institutional responses (such as restricting access or stopping use) to more extensive remedies.

2.10.3.1.1. When authorized by the in-theater DAF HQ Surgeon General or Surgeon General-designee, the installation bioenvironmental engineer and/or the Defense Centers for Public Health will prepare the investigation plan mentioned in **paragraph 4.5.1.2** of this instruction.

2.10.3.1.2. When authorized by the in-theater DAF HQ Surgeon General or Surgeon General-designee, the installation bioenvironmental engineer and/or the Defense Centers for Public Health will perform the health impact assessment described in **paragraph 4.5.2** of this instruction.

2.10.3.2. Assist in addressing DAF drinking water violations and related health risk issues through compliance sampling, violation notification, and risk communication per guidance in the country-specific FGS or DoDM 4715.05 V3.

2.10.3.3. Assist installations in identifying and eliminating environmental health circumstances that may lead to country-specific FGS or DoDM 4715.05 V1-5 situations of non-compliance or unacceptable human health risks.

2.10.3.4. Notify the in-theater DAF HQ bioenvironmental engineer (or Surgeon General-designee) and installation Civil Engineer of non-compliance situations based on potable water quality sampling at installation level within one (1) business day.

2.10.3.5. Perform sampling, reporting, analysis, and related actions to ensure the quality and safety of DoD drinking water systems per standards prescribed by applicable FGS or DoDM 4715.05 V3 and DAFI 48-144.

2.10.3.6. Participate in the HMMP and manage the human health aspects of the HMMP prescribed by AFI 90-821, *Hazard Communication (HAZCOM) Program*.

2.10.4. Safety (SE) will participate in the HMMP and assist with oversight of the hazardous material authorization and tracking requirements as outlined in AFMAN 32-7002, *Environmental Compliance*. SE will implement processes to identify and eliminate, where feasible, or reduce physical hazards to personnel, property, and the general public when those hazards result from operations involving hazardous material.

Chapter 3

ENVIRONMENTAL COMPLIANCE REQUIREMENTS

3.1. Scope. This chapter implements compliance requirements from DoDI 4715.05 and related DoD issuances, such as DoDD 4715.12, *Environmental and Explosives Safety Management on Operational Ranges Outside the United States*. It establishes environmental media or program area-specific standards applicable to routine activities and operations at overseas enduring locations to prevent or reduce negative impacts on the environment and/or mission success.

3.2. Compliance. DAF commanders and responsible officials at installations and other enduring locations overseas will:

3.2.1. In countries where an FGS exists, comply with all standards and criteria in the country-specific FGS. **(T-0)** Reference: DoDI 4715.05.

3.2.2. In countries where no FGS exists, comply with applicable international agreements and DoDM 4715.05 V1-5. **(T-0)** Reference: DoDI 4715.05. Seek assistance from the appropriate in-theater EF and servicing legal office in determining if a conflict exists between the DoDM 4715.05 V1-5 and an applicable international agreement.

3.2.3. Comply with applicable GCC and LEC environmental compliance policies (e.g., regulations, issuances, and memoranda) issued separate from the country-specific FGS or DoDM 4715.05 V1-5. **(T-0)** Reference: DoDI 4715.05. Such guidance may supplement topics addressed in the FGS or the DoDM 4715.05 V1-5. They also may address environmental and environment-related topics that are not addressed in the FGS or DoDM 4715.05 V1-5, such as noise and radon management.

3.2.4. For DAF activities at enduring locations that are controlled by other DoD components (e.g., United States Army, United States Navy), comply with the policies described in paragraphs **3.2.1 through 3.2.3** of this instruction that apply to the host installation. **(T-0)** Reference: DoDI 4715.05. Comply with other DAF policy and guidance to the extent compliance does not conflict with satisfying other DoD components' requirements that apply to tenants at the host installation. **(T-1)**

3.2.5. For DAF activities at enduring locations controlled by a United States military ally (e.g., Royal Air Force of the United Kingdom) or a United States coalition partner (e.g., North Atlantic Treaty Organization (NATO)), comply with the environmental compliance standards specified in the applicable international agreements, environmental annexes of operation orders, or other requirement sources. **(T-0)** Reference: DoDI 4715.05.

3.2.6. Leased facilities. For DAF activities at enduring locations it leases, comply with the environmental standards prescribed in the lease. In addition, comply with the policies and guidance identified in paragraphs **3.2.1 through 3.2.5** of this instruction, but only to the extent these policies and guidance do not conflict with lease requirements. **(T-0)** Reference: DoDI 4715.05.

3.2.7. Supplementary criteria. MAJCOMs, FLDCOMs, FOAs, DRUs and other commands will staff requests to supplement criteria through the in-theater EF and the in-theater DAF HQ. **(T-2)** See **Table 3.1** for a list of *In-Theater Department of the Air Force Headquarters*.

Table 3.1. In-Theater Department of the Air Force Headquarters.

DoD GCC	Location	In-Theater DAF HQ	Notes
United States Africa Command (USAFRICOM)	All countries in Africa	U.S. Air Forces in Europe-Africa (USAFE/AFAFRICA)	
	Ascension Island	U.S. Space Force (USSF) Space Operations Command (SPOC)	1
United States Central Command (USCENTCOM)	Kuwait	U.S. Air Forces Central Command (AFCENT)	
	Oman	U.S. AFCENT	
	Saudi Arabia	U.S. AFCENT	
	United Arab Emirates	U.S. AFCENT	
	All other locations in the United States Central Command area of responsibility	U.S. AFCENT	
United States European Command (U.S. EUCOM)	Azores (Portugal)	USAFE/AFAFRICA	
	Italy	USAFE/AFAFRICA	
	Germany	USAFE/AFAFRICA	
	Spain	USAFE/AFAFRICA	
	Turkey	USAFE/AFAFRICA	
	United Kingdom	USAFE/AFAFRICA	
	Other locations in the United States European Command except Greenland (Denmark) and Ascension Island (United Kingdom)	USAFE/AFAFRICA	
	Greenland (Denmark) Ascension Island (United Kingdom)	USSF SPOC	1
United States Northern Command (U.S. NORTHCOM)	Canada	U.S. Air Forces Northern Command (U.S. AFNORTH)	
United States Indo-Pacific Command (U.S. INDOPACOM)	Japan	5th Air Force	2
	Republic of Korea	7th Air Force	2
	All other locations in the United States Pacific Command except Japan and Republic of Korea	U.S. Pacific Air Forces (U.S. PACAF)	

United States Southern Command (U.S. SOUTHCOM)	All locations in the United States Southern Command	U.S. Air Forces Southern Command (U.S. AFSOUTH)	

Notes:

1. USSF SPOC Commander is the in-theater DAF HQ commander but must coordinate with HQ USAFE/AFAFRICA and the appropriate LEC. **(T-1).** Ascension Island and Greenland are located in the U.S. EUCOM and U.S. AFRICOM areas of responsibility.

2. U.S. PACAF commander is the in-theater DAF HQ for remediation in the U.S. INDOPACOM area of responsibility. **(T-1)**

3.2.8. Exceptions and waivers to applicable standards.

3.2.8.1. DAF commanders and responsible officials may submit a request for exceptions or waivers to requirements in the country-specific FGS or DoDM 4715.05 V1-5 in writing and staffed through the chain of command, including the in-theater DAF HQ, to the appropriate LEC for approval. However, if the DAF is the LEC, commanders and responsible officials will submit the exception/waiver request to the appropriate GCC for approval. **(T-0)** Reference: DoDI 4715.05, and through the appropriate in-theater EF and in-theater DAF HQ. **(T-2)**

3.2.8.2. DAF commanders and responsible officials will ensure the exception or waiver request addresses the matters specified in DoDI 4715.05, Enclosure 3.7.d, and **Chapter 1** of the relevant FGS or DoDM 4715.05 V1-5 (whichever applies). **(T-0)** Reference: DoDI 4715.05. DAF commanders and responsible officials will maintain a complete record of the exception request and provide a copy through the appropriate in-theater EF and in-theater DAF HQ to USD(A&S). **(T-0)** Reference: DoDI 4715.05.

3.2.9. Interactions with the LEC, GCC, other DoD components, United States Department of State, and host nation representatives.

3.2.9.1. Unless required to do so by applicable international agreement, country-specific FGS, DoDM 4715.05 V1-5, or GCC policy, installation commanders and responsible officials do not directly contact LECs, GCCs, other DoD components, United States Department of State offices or personnel, and host nation government authorities. Instead, installation commanders and responsible officials will communicate with such offices and officials on environmental matters as directed or authorized by their in-theater DAF HQ or, when authorized, the appropriate in-theater EF. **(T-2)** Installation commanders and responsible officials may communicate directly with the DAF LECs on environmental matters but should coordinate direct contacts with the appropriate in-theater EF.

3.2.9.2. The appropriate in-theater EF may communicate with the LEC, GCC, other DoD components, United States Department of State, and host nation representatives on environmental matters that impact overseas DAF installations or commands when authorized to do so by the appropriate in-theater DAF HQ. DAF commanders and responsible officials must cooperate with host nation government authorities consistent with applicable SOFAs or other international agreements and the FGS or DoDM 4715.05 V1-5 (whichever applies). **(T-0)** Reference: DoDI 4715.05. DAF commanders and

responsible officials should consult their supporting legal office for advice when interpreting international agreements and FGS or DoDM 4715.05 V1-5 provisions.

3.3. Additional Guidance and Media or Program Area Requirements.

3.3.1. Pollution Prevention. DAF commanders and responsible officials will ensure that disposition of recyclable and qualified recycling program materials derived from imported duty-free goods, is consistent with surplus or excess property agreements or the SOFA or other international agreements with host nations. **(T-0)** Reference: DoDI 4715.23, *Integrated Recycling and Solid Waste Management*.

3.3.2. Claims for Environmental Damages. DAF commanders and responsible officials should consult their supporting legal offices for guidance on processing demands for monetary compensation of personal injuries or property damage allegedly resulting from DAF environmental contamination or a DAF spill or other release of contaminants into the environment.

Chapter 4

ENVIRONMENTAL REMEDIATION REQUIREMENTS

4.1. Scope. This chapter implements remediation requirements from DoDI 4715.08 and provides limitations and prohibitions for conducting remediation on installations and other overseas enduring locations (e.g., facilities) controlled by the Department of the Air Force. This chapter does not supersede or amend any applicable international agreement respecting remediation of DAF environmental contamination overseas. It integrates concepts of sustainable operations and natural infrastructure management and is consistent with the DAF's *EMS and Environmental Quality* planning, programming, budgeting, and execution requirements established in AFI 32-7001.

4.2. Requirements. DAF commanders and responsible officials will:

4.2.1. Take prompt action to address substantial impact to human health and safety (SIHHS) due to contamination 1) caused by DoD or DAF activities and 2) located on a DAF installation, co-located base, or DAF-controlled enduring location in accordance with DoDI 4715.08 and this chapter. **(T-0)** Reference**:** AFPD 32-70.

4.2.2. For environmental contamination located on a DAF installation that is not known to be caused by DoD or DAF activities, only take action to address the contamination if it poses an SIHHS to United States forces or personnel. **(T-0)** Reference: DoDI 4715.08.

4.2.2.1. Prior to investigation actions, DAF installation commanders and responsible officials must obtain approval from the in-theater DAF HQ commander or delegated authority. **(T-0)** Reference: DoDI 4715.08.

4.2.2.2. For further action, DAF installation commanders and responsible officials, with the assistance of the GCC and LEC, formally will seek remediation performed or funded by the host nation and will obtain written concurrence from the USD(A&S). **(T-0)** Reference: DoDI 4715.08.

4.2.3. For remediation driven by an international agreement, consult with the LEC, if any, and obtain a legal determination from a level no lower than the in-theater DAF HQ that the requirement for such remediation is mandatory and arises from a binding international agreement. **(T-0)** Reference: DoDI 4715.08.

4.2.4. May perform limited remedial action needed to undertake an approved military construction project or other construction-type projects (e.g., repair, maintenance) and will fund such remediation with construction project funds (i.e., military construction or other construction sustainment, restoration, and modernization funds). **(T-0)** Reference: DoDI 4715.08. DAF commanders and responsible officials will comply with the non-military construction provisions of DoDI 4715.08 for any remediation beyond that needed for the construction to proceed. **(T-0)** Reference: DoDI 4715.08.

4.2.5. The host nation may perform remediation on a DAF-controlled installation using its own resources; however, these remedial actions are subject to DAF mission and security requirements.

4.2.6. Not undertake any remediation beyond that specified in this section, other than investigations pursuant to **paragraph 4.5.1** of this instruction. **(T-0)** Reference: DoDI 4715.08. If extraordinary circumstances are present, DAF commanders and responsible officials will formally request an exception to the provisions in DoDI 4715.08, through the GCC and from the USD(A&S). Such requests are forwarded through the Chairman of the Joint Chiefs of Staff to the USD(A&S). **(T-0)** Reference: DoDI 4715.08.

4.2.7. Perform no remediation when the in-theater DAF HQ, after consultation with in-theater DAF HQ legal staff, has determined the use of the claims process is the most appropriate solution to support DAF overseas operations. (**T-0).** Reference: DoDI 4715.08. "Ex gratia" claims efforts require special procedures in accordance with section 321 of Public Law 105-261, *Strom Thurmond National Defense Authorization Act for Fiscal Year 1999*.

4.2.8. Perform no remediation of environmental contamination when a DAF installation that has been determined by OSD to have operations terminated and returned to the host nation will. **(T-0)** Reference: DoDI 4715.08.

4.2.8.1. DAF commanders and responsible officials may take actions to prevent exposure of United States forces and personnel to contamination that poses an SIHHS or take actions that are required by an applicable international agreement.

4.2.8.2. Such DAF actions will not extend beyond the date when DoD or DAF operations are terminated at the installation or unless required by an applicable international agreement. **(T-0)** Reference: DoDI 4715.08.

4.2.9. Perform no investigations or remediation of environmental contamination at an enduring location that was once controlled or used by the DAF but has been returned to the host nation, unless required by applicable international agreement. **(T-0)** Reference: DoDI 4715.08.

4.2.10. Perform no remediation for symbolic purposes. **(T-0)** Reference: DoDI 4715.08.

4.3. Authorities.

4.3.1. Refer to **Table 3.1** of this instruction for the responsible in-theater DAF HQ authorized to make remediation decisions and address issues subject to DoDI 4715.08.

4.3.2. The responsible in-theater DAF HQ commander ensures procedures are in place in accordance with this chapter to determine if environmental contamination poses an SIHHS. **(T-0)** Reference: DoDI 4715.08. The in-theater DAF HQ commander makes these SIHHS determinations after consultation with an appropriate in-theater DAF HQ commander or designee and the LEC, if any. **(T-0)** Reference: DoDI 4715.08.

4.3.2.1. The "appropriate DoD medical authority and health evaluation authority" described in DoDI 4715.08 is the in-theater DAF HQ Surgeon General or Surgeon General-designee. The in-theater DAF HQ Surgeon General or Surgeon General-designee can delegate the authority as needed. Such delegation should be to an individual or office qualified to evaluate the levels of contamination present at a location and whether exposure to such contamination results in an SIHHS.

4.3.2.2. The in-theater DAF HQ commander may delegate the authority to make SIHHS determinations to a subordinate general officer in writing. Further re-delegation is not authorized. **(T-0)** Reference: DoDI 4715.08. Any re-delegation is subject to the consultation requirements of **paragraph 4.3.2**.

4.4. Environmental Liability . DoD overseas environmental liabilities, which include overseas environmental remediation, closure, and/or disposal costs, depend on legal circumstances and must be determined by the responsible in-theater DAF HQ legal function in consultation with the LEC, if any, and GCC legal advisors. **(T-0)** References: Public Law 103-62, *Government Performance and Results Act (GPRA) of 1993*, Public Law 103-356, *Government Management Reform Act (GMRA) of 1994*, and the Public Law 104-208, *Federal Financial Management Improvement Act (FFMIA) of 1996*, and DoDI 4715.08.

4.5. Investigation and Remediation Requirements. This section implements the investigation and remedial action requirements required in accordance with DoDI 4715.08, Enclosure 3, to include key supporting documentation requirements. These requirements are subject to change based upon GCC and/or DoD LEC remediation policy issued to implement and supplement DoDI 4715.08. Consult with the appropriate in-theater EF for guidance on how GCC and DoD LEC policy may affect the requirements of this chapter.

4.5.1. Site Investigation.

4.5.1.1. Installation Environmental Element, in conjunction with the appropriate in-theater EF, AFMC (through AFMISC and AFCEC/CZ) and AFMED/SG3PB, must substantiate that a reasonable likelihood of an SIHHS exists as a result of environmental contamination found on a DAF installation. **(T-0)** Reference: DoDI 4715.08. In case of an applicable international agreement, the Installation Environmental Element (in conjunction with the appropriate in-theater EF, AFMC (through AFMISC and AFCEC/CZ) must substantiate that a remediation provision stemming from a binding international agreement was violated. **(T-0)** Reference: DoDI 4715.08. A Site Identification Checklist is used to open a new remediation site. If the contaminated site is likely to pose an SIHHS or if a binding international agreement is violated, installation Environmental Element will use a Site Validation Checklist to document the need for a site investigation**. (T-1)**

4.5.1.2. Once concurrence is obtained that a reasonable likelihood of an SIHHS exists (and at the request and guidance of the in-theater DAF HQ Surgeon General or Surgeon General-designee) the Installation Environmental Element, with the support from the in-theater EF, AFMC (through AFIMSC and AFCEC/CZ), MAJCOM or installation bioenvironmental engineers, will create an investigation plan supporting a health impact assessment. **(T-0)** Reference: DoDI 4715.08. The investigation plan correlates to the planning activities in Phase I (Chapter 2) of *AF Tactics, Techniques, and Procedures (AFTTP*) 3-2.82, *Occupational and Environmental Health Site Surveillance at Deployment Locations*.

4.5.1.3. Installation Environmental Element will conduct investigations based on the investigation plan scope. **(T-0)** Reference: DoDI 4715.08.

4.5.1.3.1. Installation Environmental Element will focus and limit its investigations to the specific evidence or allegation that an SIHHS is present, or as otherwise required by an international agreement. **(T-0)** Reference: DoDI 4715.08.

4.5.1.3.2. Installation Environmental Element will perform investigations in stages and ensure that the need for each additional stage of investigation be supported by the results of the prior stage(s) and based on accepted science (i.e., state-of-the-art) and accredited laboratory sampling procedures. (**T-0**) Reference: DoDI 4715.08.

4.5.1.4. Other than a small insignificant amount (i.e., 1-3 cubic yards), the Installation Environmental Element will ensure that investigation measures will not include actual removal of the contamination itself but may require "risk management" measures, such as temporary access barriers, to avoid immediate human health exposure. **(T-0)** Reference: DoDI 4715.08. Site investigation correlates to activities conducted in Phases II and III (Chapters 3-4) of AFTTP 3-2.82.

4.5.2. Health Impact Assessment. A health impact assessment is performed by in-theater DAF HQ Surgeon General or Surgeon General-designee. **(T-0)** Reference: DoDI 4715.08. The appropriate in-theater DAF HQ Surgeon General or Surgeon General-designee may authorize the installation bioenvironmental engineer, the supporting in-theater EF, or a certified health risk assessor to perform the health impact assessment. The health impact assessment correlates to activities conducted in Phase IV (Chapter 5) of AFTTP 3-2.82.

4.5.3. Determinations of a Substantial Impact to Human Health and Safety (SIHHS). The in-theater DAF HQ commander determines whether existing environmental contamination is or is not causing an SIHHS. **(T-0)** Reference: DoDI 4715.08.

4.5.3.1. The in-theater DAF HQ commander makes these determinations only after consultation with the appropriate in-theater DAF HQ Surgeon General or Surgeon General-designee and DoD LEC, if any. **(T-0)** Reference: DoDI 4715.08.

4.5.3.2. If no SIHHS exists, no further action by DAF commanders and responsible officials is justified or authorized. **(T-0)** Reference: DoDI 4715.08. This decision must be documented in writing by the in-theater DAF HQ commander and must be supported by the health impact assessment that complies with **paragraph 4.5.2** of this chapter. **(T-0)** Reference: DoDI 4715.08.

4.5.3.3. The SIHHS determination process correlates to the *Occupational and Environmental Health Site Surveillance at Deployment Locations* process as defined in AFTTP 3-2.82.

4.5.4. Determinations of Remediation Based Upon an International Agreement. DAF commanders and responsible officials must comply with applicable international agreement requirements to remediate environmental contamination. **(T-0)** Reference: DoDI 4715.08.

4.5.4.1. Before such remediation begins, the in-theater DAF HQ commander will: 1) consult with the DoD LEC, if any; and 2) obtain a legal determination from the in-theater DAF HQ legal office that the requirement for such remediation is mandatory and arises from a binding international agreement. **(T-0)** Reference: DoDI 4715.08.

4.5.4.2. The in-theater DAF HQ commander will document such international agreement determinations in writing and retain them in accordance with DoDI 4715.08 and **paragraph 4.6** of this chapter. **(T-0)** Reference: DoDI 4715.08.

4.5.5. Extraordinary Circumstances. DAF commanders and responsible officials will develop extraordinary circumstances requests in coordination with the appropriate in-theater EF, in-theater DAF HQ, and DoD LEC for submission through the operational chain of command to the GCC, Joint Staff, and USD(A&S). **(T-0)** Reference: DoDI 4715.08.

4.5.6. Site Validation and Remedial Action Approval. The Installation Environmental Element (in conjunction with the appropriate in-theater EF and AFMC through AFMISC and AFCEC/CZ) must document all validated sites and remedial action decisions in writing using the Remedial Action Approval Checklist. **(T-1)**

4.5.7. Remedial Action and Closure.

4.5.7.1. Installation commanders may use their discretion in determining 1) how to conduct remediation of contamination and 2) when remedial actions are complete after consulting with the installation bioenvironmental engineer (or Surgeon General-designee) on the exposure risk assessment, the appropriate in-theater EF or servicing legal office, as appropriate, and the DoD LEC, if any.

4.5.7.2. Installation commanders will consider remedial actions complete when the environmental contamination no longer poses an SIHHS, or the action(s) fulfill DAF requirements and obligations of the applicable international agreement. **(T-0)** Reference: DoDI 4715.08.

4.5.7.3. The Installation Environmental Element will complete a remediation completion report for each site detailing the extent of remedial actions taken, cost of the remediation, and any negotiated conditions. **(T-0)** Reference: DoDI 4715.08. The Installation Environmental Element prepares the remediation completion report using the remediation complete checklist referenced in **paragraph 4.6.8** of this instruction. **(T-1)** If applicable, document and include the host nation regulatory approval for closure in the closure report. This report should be provided to the DoD LEC, if any, and the GCC. **(T-1)**

4.6. Site Audit File Documentation. The Installation Environmental Element, on behalf of the Installation CE, will keep all site documentation until 10 years after the installation site(s) is (are) returned to the host nation or all claims or other issues about contamination are resolved. **(T-0).** Reference: DoDI 4715.08. All site-specific records and key supporting documents will be maintained by the Installation Environmental Element, on behalf of the Installation CE, in a site audit file and will be used for documenting and reporting overseas environmental liabilities and remedial actions taken. **(T-1)** These documents are to remain current in the Air Force Records Disposition Schedule and include:

4.6.1. Site Identification Checklist. Once a potential contaminated site is identified, the Installation Environmental Element will complete a site identification checklist and submit for concurrence. **(T-1)**

4.6.2. Site Inventory. The Installation Environmental Element will maintain a contaminated site inventory differentiating between potential and validated DAF, other DoD Component, host nation or other third-party contaminated sites. **(T-1)**

4.6.3. Site Investigation Plan. The Installation Environmental Element will maintain all site investigation plans and investigation reports. **(T-0)** Reference: DoDI 4715.08.

4.6.4. Health Impact Assessments and SIHHS Determinations. The Installation Environmental Element will maintain all health impact assessments and determinations of SIHHS. **(T-0)** Reference: DoDI 4715.08.

4.6.5. Site Validation Checklist. If a contaminated site is likely to pose an SIHHS or if a binding international agreement is violated and once all necessary documentation is available, the Installation Environmental Element will complete a site validation checklist and submit for concurrence to the appropriate in-theater EF and AFMC through AFMISC and AFCEC/CZ. **(T-1)** The Installation Environmental Element will maintain the site validation checklists. **(T-1)**

4.6.6. Remedial Action Approval Checklist. Once all required concurrences, determinations, approvals and/or exception requests according to paragraphs **4.5.3.1**, **4.5.4.1**, or **4.5.5** are obtained, the Installation Environmental Element will complete a Remedial Action Approval Checklist and submit for concurrence to the appropriate in-theater EF and AFMC through AFMISC and AFCEC/CZ. **(T-1)** The Installation Environmental Element will maintain the remedial action approval checklists. **(T-1)**

4.6.7. Project Cost Estimation and Assumptions Documentation (PCEAD). The Installation Environmental Element will complete and maintain supporting cost documentation and a cost estimate basis, to include data sources and assumptions needed to validate the cost estimate basis, for each remediation project associated with a contaminated site. **(T-1)**

4.6.7.1. Additionally, the Installation Environmental Element ensures that annual cost-to-complete estimates are prepared and documented for each site in the installation's site inventory. **(T-1)**

4.6.7.2. These estimates are updated annually based on current project information and schedules in accordance with this guidance, other applicable guidance and policies, and DoDI 7000.14, *DoD Financial Management Policy*. **(T-1)** The Installation Environmental Element will ensure that the cost-to-complete estimates are reliable, reproducible, and auditable. **(T-1)**

4.6.8. Remedial Action and Management Documentation. The Installation Environmental Element will maintain all site project solicitation packages, contracts, invoices, and de-obligation request forms. **(T-1)**

4.6.9. Remediation Completion Report and Checklist. The Installation Environmental Element will prepare and retain a remediation completion report and applicable host nation closure approval. **(T-0)** Reference: DoDI 4715.08. The remediation complete checklist should be used to assist the installation in preparing this remediation completion report.

4.6.10. Subject to security requirements and applicable international agreements, DAF remediation documentation may be provided to the host nation, upon its request, consistent with applicable DAF and DoD LEC procedures (e.g., DAFMAN 16-201 and DAFI 61-201).

4.6.11. Overseas remediation documentation should be stored on e-Dash's Overseas Remediation Workspace at Overseas Remediation Workspace - Home (dps.mil) and the Enterprise Environmental, Safety, and Occupational Health - Management Information System (EESOH-MIS) at **https://eesoh.cce.af.mil/eesoh/**.

4.7. Consultations with Host Nation Authorities. DAF commanders and responsible officials conducting consultations with host nations regarding any matter covered by this chapter will comply with DoDI 4715.08, DoDI 5530.03, DAFI 51-403, and other applicable DoD and DAF issuances. **(T-0)**

4.8. Planning, Programming, Budgeting and Execution of Funds. DAF commanders and responsible officials will fund remediation of environmental contamination authorized by this instruction in the current or following fiscal year for current exposure posing an SIHHS, or for exposure about to occur within 3 to 5 years. **(T-0)** Reference: DoDI 4715.08. DAF commanders and responsible officials will not expend funds or use other resources to meet remediation requirements that are the responsibility of host nations, as stipulated in applicable international agreements. **(T-0)** Reference: DoDI 4715.08. See **paragraph 1.5** of this instruction for more planning, programming, budgeting, and execution guidance.

TOM D. MILLER, Lieutenant General, USAF
DCS/Logistics, Engineering & Force Protection

Attachment 1

GLOSSARY OF REFERENCES, TERMS, AND SUPPORTING INFORMATION

References

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Abbreviations and Acronyms

AF—Air Force

AFCEC—Air Force Civil Engineer Center

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFMED—Air Force Medical Command

AFPD—Air Force Policy Directive

AFTTP—Air Force Tactics, Techniques and Procedures

CC—Commander

CE—Civil Engineer

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DoD—Department of Defense

DoDD—DoD Directive

DoDI—DoD Instruction

eDASH—Electronic Dashboard

EF—Environmental Function

EMS—Environmental Management System

EO—Executive Order

ESOH—Environment, Safety, and Occupational Health

FFMIA—Federal Financial Management Improvement Act

FGS—Final Governing Standards

HAF—Headquarters Air Force

HAFMD—Headquarters Air Force Mission Directive

MDG/CC—Medical Group Commander

OEBGD—Overseas Environmental Baseline Guidance Document

PACAF—Pacific Air Forces

PCEAD—Project Cost Estimation and Assumptions Documentation

PEM—Program Element Monitor

SAF—Secretariat Offices within the HAF (Headquarters of the Department of the Air Force)

SecAF—Secretary of the Air Force

SG—Surgeon General

SIHHS—Substantial Impact to Human Health and Safety

SOFA—Status of Forces Agreement

TEAM—The Environmental Assessment and Management

T—Tier—USAFAFRICA—United States Air Force Africa Command

USAFCENT—United States Air Force Central Command

USAFE—United States Air Forces in Europe

USAFNORTH—United States Air Force Northern Command

USAFSOUTH—United States Air Force Southern Command

USCENTACOM—United States Central Command

USEUCOM—United States European Command

USINDOPACOM—United States Indo-Pacific Command

USNORTHCOM—United States Northern Command

USPACAF—United States Pacific Air Forces

USSF—United States Space Force

US—United States

Office Symbols

AF/A3TI—Air Force Deputy Chief of Staff, Operations, Training Infrastructure Division

AF/A4—Air Force Deputy Chief of Staff, Logistics, Engineering and Force Protection

AF/A4C—Air Force Deputy Chief of Staff, Logistics, Engineering and Force Protection, Directorate of Civil Engineers

AF/A4CA—Air Force Deputy Chief of Staff, Logistics, Engineering and Force Protection, Directorate of Civil Engineers, Asset Management Division

AF/A4CAE—Air Force Deputy Chief of Staff, Logistics, Engineering and Force Protection, Directorate of Civil Engineers, Asset Management Division, Environmental Branch

AF/JA—The Office of The Judge Advocate General

AF/SG—The Air Force Surgeon General

AFIMSC—Air Force Installation and Mission Support Center

AF/JAOE-FSC—The Office of the Judge Advocate, Operations and International Law Directorate, Environmental Law and Litigation Division – Field Support Center

AFCEC/CZ—Air Force Civil Engineer Center, Environmental Management Directorate

AFMED/SG3PB—Air Force Medical Command, Bioenvironmental Engineering Division

OUSD(A&S)—Office of the Under Secretary of Defense for Acquisition and Sustainment

SAF/GC—General Counsel of the Department of the Air Force

SAF/IE—Assistant Secretary of the Air Force for Installations, Environment and Energy

SAF/IEE—Deputy Assistant Secretary of the Air Force for Environment, Safety and Infrastructure

USSF/S4—United States Space Force, Directorate of Logistics, Engineering and Force Protection

USSF SPOC—United States Space Force Space Operations Command

Terms

Area of Responsibility—The geographical area associated with a combatant command within which a geographic combatant commander has authority to plan and conduct operations. See JP 1, *Joint Warfighting*.

Built Infrastructure—Installations, facilities and other fixed (i.e., permanent) and man-made assets essential to project, support, and sustain military forces and operations worldwide. These include buildings, airfields, roads/bridges, utility systems, stores of military equipment, and maintenance stations necessary for the support of military forces, whether they are stationed in bases, being deployed, or engaged in operations. See DoD Dictionary of Military and Associated Terms and JP 3-27, *Homeland Defense*.

Combatant Command—A unified or specified command with a broad continuing mission under a single commander established and so designated by the President, through the Secretary of Defense and with the advice and assistance of the Chairman of the Joint Chiefs of Staff. See JP 1.

Contingency Location—A non-enduring location outside of the United States that supports and sustains operations during named and unnamed contingencies or other operations as directed by appropriate authority and is categorized by mission life-cycle requirements as initial, temporary, or semi-permanent. See DoDD 3000.10.

Department of Defense (DoD) Components—The Office of the Secretary of Defense, the Military Departments, the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the DoD agencies, DoD field activities, and all other organizational entities in the DoD; one of the subordinate departments, agencies, or organizations that constitute the DoD. See JP 1.

eDASH—An online Microsoft SharePoint (™) tool is the central repository and information sharing for enterprise-wide environmental programs supporting installations and MAJCOMs/FLDCMDs. Primary one-stop source for environmental procedures, guidance, and best practices. As of the date of this publication, the link to eDASH is: (**https://usaf.dps.mil/teams/eDASH/WPP/HomePage/Home.aspx**). See AFI 32-7001.

Enduring Location—A location where DoD intends to maintain access and use for the foreseeable future. Enduring locations include main operating bases, forward operating sites, and cooperative security locations, and may be composed of more than one distinct site. Enduring locations are published in the DoD-approved Enduring Locations Master List. See DoDI 4715.05 and DoDI 4715.08.

Environment—The natural and physical conditions surrounding an activity or location.

Environmental Function—The AFIMSC Detachment 4 (USAFE – AFAFRICA), Europe Division, Environmental Branch); AFIMSC Detachment 2 (PACAF), Pacific Division, Environmental Branch; AFCEC/CZ Installation Support Section; AFCEC/CZ Regional Support Branch, as appropriate, that is responsible for providing environmental engineering support to a specific installation, organization, command, or activity located or operating outside the United States.

Environmental Quality—The measure of the condition of the DAF's natural infrastructure relative to DoD environmental requirements. Per AFPD 32-70, environmental quality includes meeting all environmental standards applicable to the DAF's present operations; planning its

future activities to minimize environmental impacts; responsibly managing the irreplaceable natural and cultural resources it holds in public trust; and eliminating pollution from its activities wherever possible.

Ex Gratia—As a favor**:** not compelled by legal right. See DoDI 4715.08.

Final Governing Standards—A comprehensive set of country-specific substantive environmental provisions. An FGS requirement is typically a technical limitation on effluent or discharge, or a specific management practice. The DoD-designated LECs develop and maintain the FGS for their assigned countries. See DoDI 4715.05.

Foreign Nation—Any geographic area (land, water, and airspace) that is under the jurisdiction of one or more foreign governments; any area under military occupation by the United States alone or jointly with any other foreign government; and any area that is the responsibility of an international organization of governments. "Foreign nation" includes contiguous zones and fisheries zones of foreign nations.

Geographic Combatant Command—A unified combatant command with responsibilities for a geographic region in support of United States strategic objectives. Its mission is to maintain command and control of United States military forces in a designated area of the world in peacetime as well as in conflict.

Health Impact Assessment—A scientific assessment that evaluates the levels of environmental contamination present at a location and whether there is a pathway of exposure that results in a substantial impact to human health and safety. See DoDI 4715.08.

Installation—An enduring location consisting of a base, camp, post, station, yard, center, or other DoD activity under the operational control of the secretary of a military department or the Secretary of Defense. See DoDI 4715.05 and DoDI 4715.08.

International Agreement—A multi-lateral or bilateral agreement, such as a base rights or access agreement, a SOFA, or any other oral or written agreement concluded between authorized representatives of the United States government and one or more foreign governments (including agencies, instrumentalities, and political subdivisions) or an international organization. DoDI 5530.03 and DAFI 51-403 specify the requirements for negotiating and concluding international agreements. See DoDI 5530.03 and DAFI 51-403.

Installation Environmental Element—the installation environmental function with overall management and execution responsibility for the installation's environmental program and focal point for monitoring the installation's compliance status with all applicable federal, state, local, and host-nation requirements.

In-Theater Department of the Air Force Headquarters—The numbered air force, MAJCOM, or HQ of a GCC that has tactical control over DAF personnel in a specific area of responsibility.

Investigation Plan—A plan prepared by appropriate DoD health evaluation authorities that describes the data and investigative steps necessary to produce a health impact assessment. The plan is designed to provide the technical data necessary for the assessment and addresses what data is sought, how it is sought, and when it is sought to ensure that an investigation is conducted in stages to avoid engaging in unnecessary investigation. See DoDI 4715.08.

Lead Environmental Component—The secretary of a military department, combatant commander, or sub-unified commander associated with DoD installations in specific foreign countries and specifically designated by OUSD(A&S) to execute various environmental compliance and remediation responsibilities prescribed by DoDI 4715.05 and DoDI 4715.08. DoDI 4715.05 authorizes the secretary of a military department to delegate assigned LEC responsibilities through the chain of command to an appropriate general officer-level commander. See DoDI 4715.05.

Natural Infrastructure—Combined natural resource elements used at an installation, e.g., water, air shed, airspace, open space, flora, and fauna.

Overseas—A geographic area located outside the jurisdiction of the United States, which includes land and associated territorial seas, contiguous zones, and exclusive economic zones of the United States; an area outside the United States (e.g., a foreign nation).

Overseas Environmental Baseline Guidance Document (DoDM 4715.05)—A set of objective criteria and management practices designed to protect human health and the environment. It reflects generally accepted federal environmental standards that apply to DoD installations, facilities, and actions in the United States. It incorporates environmental requirements of United States law that apply overseas. See DoDI 4715.05.

Program Element Monitor (PEM)—the Program Element Monitor briefs the HQ corporate board and builds the case for identifying baseline requirements and advocating any requests to address disconnects (i.e., funding shortfalls) and potential offsets (i.e., where funds could come from) as part of the development of the Program Objective Memorandum submission. See AFI 32-7001.

Remediation—A process that starts with an investigation of environmental contamination to determine whether a substantial impact to human health and safety exists or if a standard from an international agreement was exceeded; and if so, those subsequent measures that are taken to mitigate the impact or address international agreement obligation. It does not include responding to a spill. See DoDI 4715.08.

Risk—A combination of the probability and severity of a loss or an adverse impact resulting from exposure to hazards. The greater the risk, the more likely it will cause a drain on resource capability and negatively affect the mission. See AFI 32-7001.

Risk Management—The process to identify, assess, and control risks and make decisions that balance risk cost with mission benefits. See AFI 32-7001.

Spill—Release of contamination into the environment that is addressed contemporaneously (e.g., within days or weeks of the release). See DoDI 4715.08.

Substantial Impact to Human Health and Safety—A level of human exposure that is occurring or is about to occur within the next 3 to 5 years, and exceeds a generally established, published, and applied federal standard in the United States. See DoDI 4715.08.

Theater—Geographical area for which a commander of a GCC has been assigned responsibility. See JP 1.

Theater of Operations—Operational area defined by the GCC for the conduct or support of specific military operations. See JP 3-0, *Joint Campaigns and Operations*.

United States Air Forces Central—Air and Space Component of the United States Central Command.

United States Air Forces North—Air and Space Component of the United States Northern Command

United States Space Force Space Operations Command—Air and Space Component of the United States Space Command.

United States Air Forces South—Air and Space Southern Command

United States—The several States, District of Columbia, Commonwealths of Puerto Rico and Northern Mariana Islands, American Samoa, Guam, Midway and Wake Islands, United States Virgin Islands, any other territory, or possession of the United States, and associated navigable waters, contiguous zones, and ocean waters of which the natural resources are under the exclusive management authority of the United States. See DoDI 4715.05, DoDI 4715.08, and DoDD 3000.10.